



CHAPTER i.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Paisley Corporation. A.D. 1911.
—
[29th March 1911.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Paisley Corporation Order Confirmation Act 1911. Short title.

eight hundred and seventy-one his trustees duly conveyed the said lands and others in implement of his settlement and the said codicil to the said magistrates and town council : A.D. 1911.

And whereas the said portion of the said Robert Brodie's estate directed by his settlement to be conveyed to the said magistrates and town council has since 1877 been laid out and used as a public park but the portion consisting of the lands directed by his settlement to be conveyed to his nephew and afterwards by the said codicil directed to be conveyed to the said magistrates and town council and which are separated by a road from the lands laid out as a public park has continued to be let to tenants :

And whereas the provost magistrates and councillors of the burgh (herein-after called "the Corporation") are the successors in office of the said magistrates and town council :

And whereas Brown and Polson starch and cornflour manufacturers Paisley whose works adjoin the said lands not yet laid out as a public park are desirous of acquiring a portion thereof in connection with their said works and have agreed to give in exchange therefor to the Corporation a portion of ground of equal dimensions and value belonging to them and further to convey to the Corporation other land belonging to them for the purpose of widening certain roads within the burgh :

And whereas it would be of great advantage to the Corporation as regards the amenity of the lands conveyed to them under the said Robert Brodie's settlement that the said exchange should be effected and it is expedient that the same should be sanctioned and that the agreement for such exchange as set out in the schedule to this Order should be confirmed :

And whereas in the month of March 1904 the Corporation by special order duly passed and confirmed resolved in terms of section 99 of the Burgh Police (Scotland) Act 1903 that section 46 of that Act should not apply to the burgh and that the corresponding section of the Paisley Police and Public Health Act 1901 (being section 6 subsection 13) should remain in force within the burgh :

And whereas it is expedient that the said special order should be rescinded and that the sections of the Burgh Police (Scotland) Act 1892 mentioned or referred to in section 46 of the said Act of 1903 should be made applicable to all assessments levied by the Corporation within the burgh :

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A.D. 1911. And whereas with a view to uniformity in levying assessments within the burgh it is desirable that the provisions of section 347 of the Burgh Police (Scotland) Act 1892 should apply to all assessments leviable by the Corporation in respect of the classes and descriptions of lands and premises specified under heads 1 2 and 3 of the said section :

And whereas it is expedient to amend in relation to the burgh the provisions of the Town Councils (Scotland) Act 1900 relating to the filling up of casual vacancies in the Corporation :

And whereas in the years 1890 and 1891 the Corporation purchased ground and laid out the same as a cemetery under the powers of the Burial Grounds (Scotland) Act 1855 and borrowed money for that purpose :

And whereas by section 93 of the Paisley Police and Public Health Act 1901 it is provided that from and after the commencement of that Act the Corporation should only be bound to pay in or set apart annually as a sinking fund for the repayment of the money so borrowed one-fortieth part of the principal sum borrowed :

And whereas for some years previously to the passing of the last-mentioned Act the Corporation had paid or set aside annually one-fortieth part only of the amount so borrowed as aforesaid by reason whereof there is debt outstanding which should at this date have been repaid and it is expedient to provide for the repayment thereof in manner provided by this Order :

And whereas it is expedient to amend in manner provided by this Order the provisions of the Paisley Police and Public Health Act 1901 relative to the signature of certain deliverances of the dean of guild court of the burgh :

And whereas the Corporation are the owners of a model lodging-house situate in Arthur Street within the burgh the income from which exceeds the expenditure thereon and it is expedient to make provision for the application of such surplus income in manner provided by this Order :

And whereas the Corporation have established an accident fund to meet claims arising out of accidents occurring to persons in their employment and it is expedient to sanction the same and to authorise the continuance of such fund :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by

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Parliament under the provisions of the Private Legislation A.D. 1911.
Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the
last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited for all purposes as the Paisley Short title.
Corporation Order 1911.

2. This Order shall except where otherwise expressly pro- Commence-
vided come into force upon the date of the passing of the Act ment of
confirming the same which date is herein-after referred to as Order.
“the commencement of this Order.”

3. Words and expressions to which meanings are assigned Interpretation.
by the Burgh Police (Scotland) Acts 1892 to 1903 or the Town
Councils (Scotland) Act 1900 have in this Order the same
respective meanings unless there be something in the subject or
context repugnant to such construction:

And in this Order—

The expression “the burgh” means the burgh of Paisley
in the county of Renfrew and the expression “the
Corporation” means the provost magistrates and
councillors of the burgh.

4.—(1) The agreement made between John Armour Brown Confirmation
of the first part and the Corporation of the second part set forth of agreement
in the schedule to this Order is hereby confirmed and made for exchan-
binding on the parties thereto. bion of
portion of
lands of
Carriaghill.

(2) The piece of land by the said agreement agreed to be
conveyed to the Corporation and described in article first thereof
shall when so conveyed be held by the Corporation upon the
same trusts and for the same purposes as those to and for which
the portion of the lands of Carriaghill by the said agreement
agreed to be conveyed by the Corporation to the said John
Armour Brown were subject and could be used prior to such
conveyance.

5. As from and after the term of Whitsunday one thousand Section 46 of
nine hundred and eleven so much of the special order of the Police Act of
Corporation passed on the third and confirmed on the thirty-first 1903 to be
both days of March one thousand nine hundred and four as applicable to
resolved that section 46 of the Burgh Police (Scotland) Act 1903 burgh.
should not be applicable to the burgh shall cease to have effect

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A.D. 1911. and as from the date aforesaid the said section shall be applicable to the burgh and shall prevail over the corresponding provisions of any local Act relating to the burgh.

Section 347
of Police Act
of 1892 to
apply to all
statutory
assessments.

6. The provisions of section 347 of the Burgh Police (Scotland) Act 1892 which limit the annual value for the purposes of the assessments under the said Act shall apply to all assessments leviable by the Corporation in respect of the classes and descriptions of lands and premises specified under heads 1 2 and 3 of the said section.

Amendment
of Town
Councils
(Scotland)
Act 1900
relating to
casual
vacancies in
Corporation.

7. Notwithstanding anything in the Town Councils (Scotland) Act 1900 contained in case of any vacancy occurring in the Corporation from any cause (other than retirement in ordinary rotation at an annual election) between the eighteenth day of October in any year being the last day for the issue of the notice referred to in section 42 (Notice of vacancies and dates of nomination and election) of the Town Councils (Scotland) Act 1900 and the first day of October in the following year the vacancy so occurring shall subject to the provisions of the following section of this Order be filled up by a special election by the electors of the ward in respect of which such vacancy has occurred and the following provisions shall apply and have effect (that is to say):—

(1) The election shall be conducted and the costs and charges thereof defrayed in the same manner as in the case of an annual election:

(2) The town clerk of the burgh as soon as may be after the occurrence of the vacancy shall subject to the approval of the Corporation fix the date of the election and the dates for the issue of all necessary notices and for lodging and withdrawing nomination papers so that the intervals between such respective dates shall be the same as in the case of an annual election and such notices and papers shall be in or as nearly as may be in the forms respectively used in the case of an annual election:

(3) The town clerk shall by notice to be affixed to the outside wall of the municipal buildings in the burgh and also to be published by handbills posted up throughout the ward in respect of which the vacancy has occurred intimate (1) the cause of the vacancy (2) the ward

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in which the vacancy falls to be filled up (3) the date and place for lodging and withdrawing nomination papers (4) the date of the election in the event of there being a poll and (5) the polling place: A.D. 1911.

(4) If more than one candidate is nominated for the vacancy the town clerk shall by notice to be affixed and published as aforesaid give the names of all persons so nominated and not withdrawn:

(5) The person elected at the election shall hold the office of town councillor during the period for which the person vacating such office might lawfully have held the same.

8. In case of any such vacancy as is referred to in the last preceding section occurring within the three months immediately preceding an annual election the Corporation may resolve that such vacancy shall not be filled up until such annual election. Vacancy within three months of annual election.

9. Notwithstanding anything contained in the Burial Grounds (Scotland) Act 1855 or in section 93 of the Paisley Police and Public Health Act 1901 the Corporation shall only be bound from and after the commencement of this Order to pay into or set aside to the credit of the sinking fund for the repayment of loans already borrowed by the Corporation under the first-mentioned Act such equal annual sums as shall be sufficient to repay the amount of such loans outstanding as at the 15th day of May 1910 by the 15th day of May 1927. Sinking fund under Burial Grounds Acts.

10. From and after the commencement of this Order section 65 (President of court quorum &c.) of the Paisley Police and Public Health Act 1901 shall be read and have effect as if the words "appointing service or intimation of any petition or other step of procedure" were omitted therefrom and as if the words "Deliverances appointing service or intimation of any petition may be signed by the clerk of court" were added thereto. Amendment of section 65 of Paisley Police and Public Health Act 1901.

11. The Corporation may apply in reduction of the rates of the burgh the revenue from time to time derived by the Corporation from the working of the model lodging-house belonging to the Corporation situate in Arthur Street within the burgh after providing for the proper upkeep and working of such lodging-house. Application of surplus revenue from model lodging-house.

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Power to
continue and
maintain
accident
fund.

12.—(1) The accident fund (in this section called “the fund”) already created by the Corporation to meet claims upon them arising out of accidents occurring to persons in their employment and the contributions heretofore made by the Corporation to the fund are hereby sanctioned and confirmed and the Corporation may continue to maintain the fund and to contribute thereto annually out of any of the revenues of the Corporation such sums as they may from time to time determine.

(2) The fund and the annual contributions thereto shall be invested in securities in which trustees are for the time being authorised to invest and shall be accumulated at compound interest but the Corporation may at any time resort to the fund for the purpose of meeting any such claim as is mentioned in this section.

(3) In the event of the claims arising at any time exceeding the amount of the fund the Corporation may charge their revenues and funds and those of the several departments under their administration with such sums as may be necessary to meet such claims. Such sums shall be paid into the fund under the name of extraordinary contributions and shall along with the fund be applied in meeting such claims.

(4) The fund shall not at any time exceed five thousand pounds but if it be reduced at any time it may be again restored to the said amount. Provided that the Corporation may notwithstanding that the fund may have reached the said amount repay by means of such contributions as aforesaid any extraordinary contributions that may have been made to the said fund which may not previously have been repaid.

Costs of
Order.

13. All costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Corporation out of the burgh general assessment of the burgh.

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The SCHEDULE referred to in the foregoing Order.

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MINUTE OF AGREEMENT between JOHN ARMOUR BROWN starch manufacturer in Paisley the sole surviving trustee heritably vested for behoof of the firm of BROWN AND POLSON starch manufacturers in Paisley and the individual partners thereof in the lands of Carriagehill or Wester Carriagehill belonging to said firm whereof the plot of ground first herein-after described forms part of the first part and herein-after called the first party and the PROVOST MAGISTRATES AND COUNCILLORS OF THE BURGH OF PAISLEY of the second part and herein-after called the second party witnesseth:—

WHEREAS it has been agreed between the parties subject to the sanction of Parliament being obtained that by means of a contract of excambion or other deed or deeds the first party as trustee foresaid shall convey to the second party the plot or area of ground first herein-after described and the second party shall convey to the first party as trustee foresaid the plot or area of ground second herein-after described both freed of all burdens except as after mentioned and that without the one party paying to the other any price in respect of such exchange of land:

And whereas it has been further agreed that the first party as trustee foresaid shall throw into the streets or roads within the burgh of Paisley known as Neilston Road and Falside Road certain portions of land as after mentioned and that the second party on behalf of themselves and their successors in office shall come under certain obligations to the first party and his successors in the said lands of Carriagehill or Wester Carriagehill in respect of the said streets or roads before and after mentioned and the footpaths in connexion therewith and that all without any price being paid by the one party to the other party in respect thereof:

Therefore the parties agree on behalf of themselves and their successors as aforesaid as follows (videlicet):—

1. By means of a contract of excambion or other appropriate deed or deeds the first party as trustee foresaid shall (with warrandice from fact and deed only and binding the parties beneficially interested in said lands belonging to him as aforesaid in absolute warrandice) convey to the second party all and whole that plot or area of ground lying in the parish of Paisley and county of Renfrew situated on the south side of the road now called Braid's Road leading from the turnpike road between Paisley and Neilston to the Brodie Park and

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A.D. 1911. containing four thousand four hundred square yards or thereby imperial standard measure and bounded as follows (videlicet) On the north (first) by subjects belonging to the second party along which it extends nine feet or thereby (second) by Braid's Road along which it extends one hundred and ninety feet four inches or thereby and (third) by subjects feued to John Thomson Grierson clerk residing at number eight Cochran Street Paisley along which it extends seven and a half inches or thereby on the south (first) by other lands belonging to the first party as trustee foresaid along which it extends two hundred and thirty feet nine inches or thereby and (second) by subjects belonging to the second party along which it extends four feet or thereby on the east (first) by subjects feued to the said John Thomson Grierson along which it extends on the west face of the gable of the tenement of houses built on said steading the centre of a mutual fence the west face of certain back buildings and the centre line of a mutual fence in continuation thereof in all one hundred and sixty-five feet three inches or thereby and (second) by other lands belonging to the first party as trustee foresaid along which it extends thirty-three feet six inches or thereby and on the west by subjects belonging to the second party along which it extends (first) eighteen feet six inches or thereby (second) thirty-three feet or thereby and (third) one hundred and thirty-two feet or thereby all as delineated and shown within lines and coloured red on a plan or sketch made out by the master of works of the burgh of Paisley and annexed and signed as relative hereto.

2. No price is to be paid by the second party to the first party in respect of said conveyance.

3. In respect that the plot or area of ground after mentioned to be conveyed by the second party to the first party forms part of all and whole those portions of the lands of Carriagehill lying within the Abbey parish of Paisley and shire of Renfrew particularly described in the disposition dated fifteenth December one thousand eight hundred and seventy-three and recorded in the register of the county of Renfrew seventeenth January one thousand eight hundred and seventy-four granted by Robert Robertson and others trustees acting under the trust disposition and settlement and relative codicil of the deceased Robert Brodie sometime bank accountant who latterly resided at Carriagehill House Paisley dated respectively twenty-fourth June and seventeenth November one thousand eight hundred and seventy and registered in the books of council and session on sixth March one thousand eight hundred and seventy-one in favour of the provost bailies and remanent members of the town council of the burgh of Paisley for behoof of the whole body of the community under the express burden and condition of being in all time coming held retained and applied by the said provost bailies and remanent members of the town council of

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said burgh and their successors in office as pleasure grounds or place of public resort or recreation for the use of the inhabitants of Paisley And considering that by means of the Provisional Order after mentioned said plot or area of ground is to be freed from said bequest and the provisions of said trust disposition and settlement and codicil and the said disposition following thereon and thereafter held by the first party and his successors therein freed of all burdens and conditions And considering that it has been agreed that the plot or area of ground before described is to be brought under and held in lieu of the plot or area of ground after described as a portion of said bequest and under the conditions of said trust disposition and settlement and codicil and said disposition the said plot or area of ground before described to be conveyed by the first party to the second party shall be held by the provost magistrates and councillors of the burgh of Paisley and their successors in office for behoof of the whole body of the community as pleasure grounds or place of public resort or recreation for the use of the inhabitants of Paisley and for no other purpose whatsoever and shall be so conveyed by the first party as trustee foresaid to the second party. A.D. 1911.

4. By means of said contract of excambion or other appropriate deed or deeds the second party shall convey to the first party as trustee foresaid all and whole that plot or area of ground part of the lands of Carriagehill lying in the parish of Paisley and county of Renfrew extending to four thousand four hundred square yards or thereby and bounded as follows (videlicet) On the north by other portions of said lands of Carriagehill along which it extends three hundred and eighty-two feet six inches or thereby on the south and east by the centre line of Espedair Burn along which it extends following the bend three hundred and seventy-four feet or thereby and on the west (1) by Braid's Road along which it extends twenty feet or thereby and (2) by a part of the lands of Carriagehill or Wester Carriagehill belonging to the first party as trustee foresaid along which it extends one hundred and thirty-three feet nine inches or thereby all as delineated and shown within lines and coloured blue on the plan or sketch before mentioned annexed and signed as relative hereto said portion of ground so to be conveyed to be freed in all time coming of all burdens and conditions whatsoever.

5. No price is to be paid by the first party to the second party in respect of said last-mentioned conveyance.

6. In respect the said plot or area of ground last before mentioned forms as before mentioned a portion of the lands held in trust by the provost magistrates and councillors of the burgh of Paisley the second party bind and oblige themselves and their successors in office to

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A.D. 1911. — promote a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 for which application has already been made by them to the Secretary for Scotland enabling them to convey the said plot or area of ground to the first party as trustee foresaid for the absolute use and benefit of the said first party or the said firm of Brown and Polson or his or their assignees in exchange for a conveyance by the first party in their favour of the plot or area of ground described in the first article hereof and this agreement is intended to be scheduled to and confirmed by said Order and is made subject to such alterations as may be made thereon by Parliament or by the Secretary for Scotland during the progress of said Order and in the event of its being found impossible to procure said Order or of Parliament or the Secretary for Scotland making any material alterations therein affecting the terms of this agreement either party may resile therefrom.

7. The first party as trustee foresaid agrees and binds himself to pay to the second party the sum of one hundred and sixty pounds as a contribution towards the cost of said Provisional Order beyond which sum the expenses of said Provisional Order if any are to be borne exclusively by the second party.

8. The second party shall settle and so free and relieve the first party of all payments due or to become due to the tenants of the second party on said plot or area of ground last before mentioned in respect of their or any of their claims as market gardeners or otherwise in any manner of way.

9. The first party as trustee foresaid shall without any price being paid therefor convey to the second party the portions of ground fronting Neilston Road and Falside Road amounting in cumulo to one thousand nine hundred and eighty square yards or thereby all as coloured pink and shewn on the plan or sketch made by the said master of works and annexed and signed as relative hereto.

10. The said portions of ground last mentioned shall on said Provisional Order being confirmed by Parliament be thrown into said respective roads and the second party shall at their own cost (a) take down the existing walls fronting said roads so far as necessary (b) erect to the satisfaction of the first party as trustee foresaid along the proposed new building line as shown on said last-mentioned plan or sketch a wall with gates therein similar in construction and height to the presently existing wall and gates on the west and north of said roads respectively or other suitable fence to the satisfaction of the first party as trustee foresaid (c) lay a footpath along the west side of Neilston Road as widened and a footpath along the north side of Falside Road as widened with the necessary kerbs and channels and

(d) take over said Neilston Road as widened and the said westmost pavement therein and said Falside Road as widened and the said northmost pavement therein and that free of all expense to the first party as trustee foresaid which roads as widened and said pavements shall be kept up and maintained by the second party and their successors in office in all time coming. A.D. 1911.

11. The building line on the west of Neilston Road and on the north of Falside Road as shown on said last-mentioned plan is hereby fixed and determined for all time coming and the second party bind themselves and their successors in office not to require the first party or his successor in the said lands belonging to him to build at any time farther west or north of said roads than the building line shown on said plan. Notwithstanding the proposed building line shown on said plan as the south boundary of said Falside Road being so shown thereon the said line shall in no way prejudice the rights of the first party or the then proprietors of the ground on the south of said road when the ultimate width of said road falls to be definitely fixed and determined.

12. The expenses of these presents and of the contract of excambion or conveyance or other deed or deeds to follow hereon shall be borne by the first and second parties mutually ; and

Lastly Should any question arise between the parties as to the materiality of any alteration made by Parliament or the Secretary for Scotland on this agreement or as to the true intent or meaning of these presents or as to the contract of excambion or conveyance or other deeds to follow hereon or the terms of said deeds or as to any other matters provided for hereunder or arising hereout the same are hereby referred to the amicable decision of an arbiter to be named (on application to him by any party interested) by the sheriff substitute of Renfrew and Bute at Paisley And both parties consent to the registration hereof for preservation and execution.

In witness whereof these presents written on this and the four preceding pages of paper duly stamped by William Crawford apprentice to James Edward Campbell and James Cook both writers in Paisley are (together with said two plans annexed) subscribed in duplicate at Paisley upon the twelfth day of July in the year nineteen hundred and ten as follows (videlicet) By the said John Armour Brown before these witnesses the said James Cook and William Crawford and by William Muir MacKean provost and Francis Martin town clerk of the burgh of Paisley for and on behalf of the provost magistrates and councillors of said burgh at a meeting of the town council of said burgh held at Paisley before these witnesses James Ferguson Johnstone deputy town

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A.D. 1911. clerk of said burgh and Alexander Morrison writer in the town clerk's
office Paisley.

J. COOK Witness.

J. ARMOUR BROWN.

WILL CRAWFORD Witness.

JAS. F. JOHNSTONE Witness.

WM. MUIR MACKEAN Provost.

ALEXR. MORRISON Witness.

FRA. MARTIN Town Clerk.

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